

GUARDIANSHIP OF MERCELUS JANETT ALLEN

Case Number: 25PG-0032849

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for hearing on a Petition for Appointment of Guardian of the Person of minor, Mercelus Janett Allen. The Petition was filed by the minor's paternal grandfather, John Samuels. Letters of Temporary Guardianship issued on March 19, 2025. The Temporary Guardianship's powers are set to expire today unless further extended.

The Court will deem the minor served as there is a temporary guardianship in place with Petitioner. There is proof of service on file for the maternal grandfather and sibling, Maleeah. The Court dispenses with service to that maternal grandmother (unknown/homeless). There is no proof of service of the Notice of Hearing for the mother, father, or paternal grandmother. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward with the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Alternatively, any party consenting to the guardianship can complete and file Judicial Council Form GC-211, section 4.

The Confidential Screening Form (GC-212) is incomplete. Petitioner is required to file an amended form complete with attachment 14. The Court has reviewed the Court Investigator's report, filed April 7, 2025, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

This matter is continued to **Monday, June 16, 2025, at 8:30 a.m. in Department 42** for further proceedings on the Petition. The Temporary Guardianship is ORDERED to remain in effect until the continued hearing date. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**